

25SMCV01392 25SMCV01392

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV01392 Hearing Date: July 2, 2026 Dept: M

CASE NAME: Espili, et al., v. Sanford

CASE NO.: 25SMCV01392

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 6/30/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2033.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendant Victoria Sanford

moves to compel initial discovery responses from Plaintiff Kasey Renee Hartman as to Request for Production of Documents ("RPDs"), Set One, without objections. Defendant requests monetary sanctions against

Plaintiff in the amount of \$850.25. Defendant

also moves to compel initial discovery responses from Plaintiff Kaveh Espili as to RPDs, Set One, and moves for sanctions in the amount of \$850.25

Defendant demonstrates that

she served Hartman and Espili with the subject discovery on January 14, 2026.

(Shaw Decl., ¶ 4, Ex. A.) Despite four extensions, Hartman served no responses.

(Shaw Decl., ¶ 9.)

In light of the duplicative

nature of these two motions and the two prior motions, the Court will exercise

its discretion and not impose any additional monetary sanctions. Responses are ordered within 20 days.